

1.	22CV0205	MULTI-HOUSING TAX CREDIT v. CBM-96
Motion for Leave to File First Amended Complaint		

Plaintiff Multi-Housing Tax Credit Partners, III ("Plaintiff") brings a Motion for Leave to File First Amended Complaint ("Motion") pursuant to Code of Civil Procedure §§ 473(a)(1) and 576 and on the ground that the furtherance of justice will be served only if the Court allows the First Amended Complaint ("FAC") to be filed so that the Court can rule on all possible claims in this single action and the entire dispute between the parties can be resolved. The Motion does not comply with Local Rule 7.10.05. Repeated failure to comply with the requirements of the Local Rules may result in sanctions, pursuant to Local Rule 7.12.13.

The Complaint was filed on February 16, 2022, and includes causes of action for Breach of Contract, Declaratory Relief, and Fraud. The proposed FAC adds a new cause of action for negligence. Plaintiff argues that the parties will not be prejudiced, because the proposed new cause of action involves the same facts and no additional discovery will be required. Based on the Court's review of the proposed FAC, this is accurate.

Defendant CBM-96 ("Defendant") argues the Motion should be denied because the proposed amendment will cause substantial prejudice to Defendant, Plaintiff unduly delayed in bringing the Motion, and the negligence claim is barred by the statute of limitations. The Court is not persuaded that there will be substantial prejudice to Defendant, especially when weighed against the liberal policy in favor of amendment. Whether or not additional discovery is needed is not significant to the Court's analysis because the Court notes that trial has not been set and discovery is still open. In terms of delay, Defendant cites *Roemer v. Retail Credit Co.* (1975) 44 Cal.App.3d 926 and *Duchrow v. Forrest* (2013) 215 Cal.App.1359. In both cases, the parties sought to amend after trial. That is not the case here. Lastly, whether or not the negligence cause of action is barred by the statute of limitations or overcomes the statute through an exception, is not something to be decided under this Motion.

Pursuant to Code of Civil Procedure §§ 473(a)(1) and 576, in the furtherance of justice, and in light of the liberal policy favoring amendment, Plaintiff's Motion is granted.

TENTATIVE RULING #1: PLAINTIFF'S MOTION FOR LEAVE TO AMEND IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO

COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.